

25STCV27312 25STCV27312

County: los-angeles

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Case Number: 25STCV27312 Hearing Date: July 13, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

NIR

SHTOLZBERG, et al.,

vs.

FCA US,

LLC., et al.

Case No.:

25STCV27312

Hearing Date: July 13, 2026

Defendant

FCA US, LLC's demurrer to Plaintiffs Nir Shtolzberg's and Michelle Shtolzberg's

First Amended Complaint is sustained as to the

3rd and 6th causes of action with 20 days leave to amend and overruled

as to the 4th cause of action.

Defendant FCA US, LLC ("FCA") ("Moving Defendant")
demur to Plaintiffs Nir Shtolzberg ("Nir") and Michelle Shtolzberg ("Michelle")
(collectively, "Plaintiffs") first amended complaint ("FAC") as to the 3rd,
4th, and 6th causes of action. (Notice
of Demurrer, pg. 2.)

CRC Violation

CRC Rule 3.1354(b)
provides, in part:

All written

objections to evidence must be served and filed separately from the other
papers in support of or in opposition to the motion. Objections to specific
evidence must be referenced by the objection number in the right column of a
separate statement in opposition or reply to a motion, but the objections must
not be restated or reargued in the separate statement. Each written
objection must be numbered consecutively and must:

- (1) Identify the name of the document in which the
specific material objected to is located;
- (2) State the exhibit, title, page, and line number of the
material objected to;
- (3) Quote or set forth the objectionable statement or
material; and
- (4) State the grounds for each objection to that statement
or material.

(CRC, Rule 3.1354(b),
emphasis added.)

Plaintiffs' 6/29/26 evidentiary

objections are in violation of CRC, Rule 3.1354(b) because they are not in the
format illustrated in CRC, Rule 3.1354(b); specifically, they are not
consecutively numbered for each item objected to and do not quote or set
forth the objectionable statement or material.

Evidentiary Objections

Plaintiffs' 6/29/26 evidentiary objection to Moving Defendant's request for judicial notice is sustained.

Request for Judicial Notice

Moving Defendant's 5/11/26 request for judicial notice of complaints filed in unrelated cases is denied as irrelevant.

Background

Plaintiffs filed their initial Complaint on September 17, 2025, against Moving Defendant and Non-Moving Defendant Dependable Chrysler Dodge Jeep Ram ("Dependable") (collectively, "Defendants").

On April 7, 2026, Plaintiffs filed the operative FAC alleging six causes action: (1) violation of Civil Code §1793.2(d) [against FCA]; (2) violation of Civil Code §1793.2(b) [against FCA]; (3) violation of Civil Code §1793.2(a)(3) [against FCA]; (4) breach of implied warranty of merchantability (Civil Code §§1791.1, 1794, 1795.5) [against FCA]; (5) negligent repair [against Dependable]; and (6) fraudulent inducement- concealment [against FCA].[1]

Moving Defendant filed the instant demurrer on May 11, 2026. Plaintiffs filed their opposition on June 29, 2026. As of the date of this hearing no reply has been filed.

Meet and Confer

Before filing a demurrer, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41, emphasis added.)

Moving Defendant's counsel declares that on May 6, 2026, she met and conferred with Plaintiffs' counsel telephonically and the parties were

unable to resolve the issues presented by this demurrer. (See Decl. of Cronin ¶12.) Moving Defendant's counsel's meet and confer

declaration is sufficient under C.C.P. §430.41. Accordingly, the Court will consider Moving Defendant's demurrer.

Summary of Demurrer

Moving Defendant demurs to the 3rd cause of action on the basis that it fails to state facts sufficient to support an additional and distinct claim for breach of the Song-Beverly Consumer Warranty Act under Civil Code §1793.2(a)(3). (Demurrer, pg. 2.) Moving Defendant demurs to the 4th and 6th causes of action on the basis that they are time-barred by the applicable statutes of limitations set forth in Commercial Code §2725, Civil Code §1791.1(c), and C.C.P. §338(d). (Demurrer, pg. 2.) Moving Defendant demurs to the 6th cause of action for fraudulent inducement-concealment on the basis it fails to allege facts sufficient to state a claim with the requisite particularity. (Demurrer, pg. 2.)

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District (1992) 2 Cal.4th 962, 967.)

Statute of Limitations

4th and 6th COAs

Under Commercial Code §2725, claims for breach of warranty are subject to a four-year statute of limitations that begins to run at the time of

delivery. (See Comm. Code §§2725(1)-(2).) The four-year limitations period applies unless a plaintiff demonstrates a valid basis for tolling. (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305.)

Plaintiffs allege they entered into a warranty contract with Moving Defendant for a 2020 Jeep Wrangler ("Subject Vehicle") on or about June 7, 2020. (FAC ¶7.) Plaintiffs do not allege when the Subject Vehicle was delivered; therefore, Moving Defendant's argument that the FAC provides, on its face, a basis to demur that the statute of limitations has run is incorrect.

With regard to Plaintiff's cause of action for fraudulent concealment, C.C.P. §338(d) in fraud cases require plaintiffs to exercise reasonable diligence in discovering alleged fraud. (Seelenfreund v. Terminix of Northern California, Inc. (1978) 84 Cal.App.3d 133, 136.) Plaintiffs allege they entered into a warranty contract with Moving Defendant for the Subject Vehicle on or about June 7, 2020. (FAC ¶7.) Plaintiffs do not allege when the Subject Vehicle was delivered; therefore, Defendant's argument that the FAC provides, on its face, a basis to demur that the statute of limitations has run is incorrect.

Under Civil Code §1791.1(c), implied warranties have an absolute maximum duration of one year from the sale of new consumer goods. (Atkinson v. Elk Corp. of Texas (2006) 142 Cal.App.4th 212, 230-231 [stating expiration is absolute regardless of later discovery].) Plaintiffs allege they entered into a warranty contract with Moving Defendant for the Subject Vehicle on or about June 7, 2020. (FAC ¶7.) Plaintiffs do not allege when the Subject Vehicle was delivered; therefore, Defendant's argument that the FAC provides, on its face, a basis to demur that the statute of limitations has run is incorrect.

Accordingly, Defendants' demurrer to the 4th and 6th causes of action based on the statute of limitations is overruled.

Failure to State a Claim

Violation of Civil Code §1793.2(a)(3) (3rd COA)

Civil Code §1793.2(a)(3) requires a manufacturer that sells consumer goods accompanied by an express warranty to make available to its authorized service and repair facilities sufficient service literature and

replacement parts to effect repairs during the express warranty period. A violation of that obligation is actionable under Civil Code §1794, which permits a buyer damaged by the manufacturer's failure to comply with the Song-Beverly Act to recover damages and, where the failure is willful, a civil penalty of up to two times actual damages. (Civ. Code §§1794(a), (c).)

Plaintiffs' cause of action is devoid of factual allegations and asserts bare legal conclusions.
Plaintiffs fail to allege facts regarding the specific failure alleged.

Accordingly, Defendants' demurrer to the 3rd cause of action is sustained with 20 days leave to amend.

Fraudulent Concealment (6th COA)

"The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) The rule of specificity of pleading is only intended for affirmative fraud cases not fraud by concealment. (See Alfaro v. Community Housing Improvement Systems & Planning Association, Inc. (2009) 171 Cal.App.4th 1356, 1384.)

Plaintiffs fail to allege that Moving Defendant had a duty to disclose to Plaintiffs. (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336 ["There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the Plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the Plaintiff; (3) when the defendant actively conceals a material fact from the Plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.'"].) Plaintiffs fail to allege a transactional relationship with Moving Defendant that would invoke a duty on the part of Moving Defendant to disclose to Plaintiffs. (Id. at pgs. 336-337.)

The FAC does not allege that Plaintiffs purchased the Subject Vehicle directly from Moving Defendant. Therefore, any alleged concealment by Moving Defendant did not arise in a direct transaction between Plaintiffs and Moving Defendant. Nor has Plaintiff pled any specific facts showing that the dealer from which they purchased their vehicle is Moving Defendant's agent or establishing any other circumstance in which a duty to disclose could arise.

Accordingly, Moving Defendant's demurrer to Plaintiffs' 6th cause of action is sustained with 20 days leave to amend.

Conclusion

Moving Defendant's demurrer to the 3rd and 6th causes of action is sustained with 20 days leave to amend and overruled as to the 4th cause of action.

Moving Party to give notice.

Dated:

July ____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes Defendants only demur to the 3rd, 4th, and 6th causes of action and do not demur to the 1st, 2nd, or 5th causes of action.